

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

MARK ROVAI,  
Petitioner

VS.

ROBERT V COSTELLO,  
Respondent

) Case Number: FDI-23-797929  
)  
) Hearing Date: June 18, 2026  
)  
) Hearing Time: 9:00 AM  
)  
) Department: 404  
)  
) Presiding: CINDEE MAYFIELD  
)  
)

OTHER REVIEW HEARING

**TENTATIVE RULING**

**The parties are ordered to appear in person or by Zoom to present argument regarding Petitioner's request that Respondent be prohibited from returning to the Guerneville property absent mutual agreement of the parties. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

**Apart from the issue described above, the Court intends to adopt the following findings and orders absent good cause shown.**

**A. Procedural History**

- 1) The parties in this matter are Petitioner Mark Rovai and Respondent Robert Costello. The parties married on 9/20/2018 and separated on 10/29/2022, for a marriage of 4 years and 1 month. The parties have no minor children.
- 2) On 2/4/2026, the parties appeared for a trial before Judge Wiley on the issue of division of community property, including disposition of a residence located at 15740 Morningside Drive in Guerneville, CA. Judge Wiley took the matter under submission.

- 1 3) On 2/13/2026, Petitioner filed the instant Request for Order. Petitioner requests the Court  
2 terminate the parties' marital status. Petitioner also asks the Court for orders to sell the  
3 Guerneville property.
- 4 4) On 4/3/2026, Petitioner filed a Supplemental Declaration. Petitioner states that on 3/30/2026,  
5 Respondent stated he would stop making mortgage payments for the Guerneville property.  
6 Petitioner states he believes Respondent has also not been paying the insurance. Petitioner further  
7 requests that an elisor be appointed if Respondent does not sign a listing agreement and related  
8 documents for sale.
- 9 5) Judge Mori ordered the parties to appear at the prior 4/14/2026 hearing on Petitioner's 2/13/2026  
10 Request for Order because there was no Proof of Service on file for Petitioner's 2/13/2026  
11 Request for Order. At the 4/14/2026 hearing, Judge Mori terminated the parties' marital status  
12 and continued the hearing on Petitioner's 2/13/2026 Request for Order to 6/18/2026.
- 13 6) On 4/16/2026, a Judgment signed by Judge Wiley was entered. The Judgment requires the  
14 Guerneville residence be sold and provides detailed orders regarding how that is to be  
15 accomplished. The Judgment appoints the Clerk of the Court to serve as elisor to sign any  
16 documents that require Respondent's signature for the sale of the property if Respondent fails to  
17 sign the documents within 72 hours.
- 18 7) On 6/3/2026, Petitioner filed a Status Update asking the Court to make the following orders:  
19 a. Consider transferring this motion to Judge Wiley if appropriate;  
20 b. Provide an "indication that if we do need to use the services of the Elisor... if we should  
21 be directing the paperwork to the Clerk of Department 405 or Department 404."  
22 c. Order reimbursement to Petitioner "for all expenses that he has or will incur to ready the  
23 Guerneville property for sale as set forth in Exhibit C and that the Court approve the  
24 Exhibit C expenses"  
25 d. Respondent not to return to Guerneville during the sale process unless agreed in writing  
26 between the parties "given Rob's intransigence in this case and lack of cooperation and  
27 the fact that [he] is no longer supporting the Guerneville property."
- 28 8) There is no Proof of Service on file demonstrating service of Petitioner's 6/3/2026 Status Update.  
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1 9) On 6/9/2026, Respondent filed a Declaration stating he has taken action to facilitate the sale of  
2 the property with full intent to move the sale of the property forward. Respondent states he has  
3 removed many of the contents of the Guerneville property. Respondent states Petitioner had the  
4 locks changed on 6/1/2026 and he cannot regain access to the property to remove remaining  
5 items. Respondent states he has continued to make payments for electricity; gas; water; garbage;  
6 Internet; and homeowners, earthquake, and umbrella insurances. Respondent states repairs are  
7 being undertaken without prior notice to him.

8 10) There is no Proof of Service on file demonstrating service of Respondent's 6/9/2026 Declaration.

9 **B. Findings and Order**

- 10 1) Petitioner's request to transfer this motion to be heard by Judge Wiley is denied.
- 11 2) If Petitioner requires the signature of the Clerk of the Court as elisor to sign documents needed  
12 for the listing of the property or for the acceptance of an offer (provided these documents were  
13 first presented to Respondent and Respondent given at least 72 hours to sign the documents as  
14 required by the Judgment), Petitioner shall file an ex parte Request for Order, directed to Dept.  
15 404. Petitioner shall attach to the ex parte Request for Order true and correct copies of the  
16 documents that require Respondent's signature.
- 17 3) The Court's jurisdiction to adjudicate reimbursement claims related to payments made for the  
18 property pending sale is reserved. Once the property has sold, the parties shall meet and confer on  
19 this issue and if the parties are unable to reach an agreement, either party may file a Request for  
20 Order.
- 21 4) **Regarding Petitioner's request that the Court prohibit Respondent from returning to the**  
22 **Guerneville property except by mutual agreement of the parties, the parties shall appear at**  
23 **the hearing on 6/18/2026 and present argument regarding this request.**
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